

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING AND UPDATING THE SOLID WASTE FEE SCHEDULE IN ACCORDANCE WITH SECTION 8.44.010 OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AND REPEALING ORDINANCE NO. 4621.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Cheyenne City Ordinance No. 4621, adopted by the governing body on May 12, 2025, authorized the fee schedule currently applicable to solid waste services under Title 8, Chapter 8.44, of the Cheyenne City Code.

Section 2. That, in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming, the Public Works Director is required to present the solid waste fee schedule to the City Council for approval, and the governing body hereby approves and adopts the updated Solid Waste Fee Schedule attached hereto as Exhibit A and incorporated herein by reference.

Section 3. That the Solid Waste Fee Schedule adopted by this ordinance shall become effective on July 1, 2026.

Section 4. That effective July 1, 2026, the solid waste fee schedule previously adopted by Ordinance No. 4621 is hereby repealed.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

Exhibit A

CITY OF CHEYENNE SOLID WASTE FEE SCHEDULE

Fees monthly unless otherwise noted. Container rental is included in rate.

<u>COMMERCIAL, SCHOOLS, CHURCHES, PUBLIC BUILDINGS, RESIDENTIAL MULTI-UNITS, MOTELS, ASSISTED LIVING FACILITIES</u>						
Days Per Week Pickup	1	2	3	4	5	6
***Container Type (CY = Cubic Yard)						
1.5-2 CY 1st container	\$130.92	\$186.39	\$241.85	\$297.32	\$352.85	\$396.43
*1.5-2 CY Add. Container	\$105.46	\$149.06	\$193.03	\$237.24	\$281.33	\$315.77
4 CY 1st container	\$217.93	\$346.76	\$453.52	\$604.67	\$733.68	\$837.14
*4 CY Add. container	\$192.04	\$309.44	\$426.83	\$544.59	\$662.23	\$754.43
6 CY 1st container	\$283.36	\$470.98	\$658.60	\$846.40	\$1,034.32	\$1,185.76
*6 CY Add. container	\$257.47	\$459.48	\$609.77	\$786.32	\$962.87	\$1,104.91
8 CY 1st container	\$342.09	\$588.43	\$834.72	\$1,081.37	\$1,328.08	\$1,527.68
*8 CY Add. container	\$316.20	\$551.04	\$785.95	\$1,021.29	\$1,256.69	\$1,447.02
**Basic rate (95 Gal. container)	\$70.04					
Additional 95 Gal. Trash container	\$12.67					
Recycling 1.5 CY 1st container	\$109.96	\$150.21	\$190.45	\$230.62	\$270.87	\$296.16
Recycling 1.5 CY Add. container	\$95.19	\$120.80	\$146.20	\$171.74	\$197.13	\$212.07
**Recycling 95 Gal 1st container	\$20.40					
**Recycling 95 Gal. Add. container	\$14.49					
**Yard Waste 95 Gal. 1st container	\$10.35					
**Yard Waste 95 Gal Add. container	\$10.35					
*Added container can be no larger than the first container						
**Must be approved by Solid Waste Administrator. All commercial 95-gallon containers will be serviced in the street unless an exception is approved by the Solid Waste Administrator or their designated representative. Trash collected weekly, recyclables every other week.						
***Container type (frontload or rear load packer) will be based on the route that services that location. Commercial apartments will be serviced by frontload containers unless an exception is approved by the Solid Waste Administrator or their designated representative.						
<u>PRIVATE RESIDENCE FEES</u>						
Automated Collection - 95 trash/95 recycle (See Notes 7,10,12)						\$32.81
Automated Collection - 60 trash/95 recycle (See Notes 7,10,12)						\$28.14
Automated Collection - 60 trash/60 recycle (See Notes 7,8,10,12)						\$24.98
Each Additional 95 Gal. Trash Container						\$11.04
Each Additional 60 Gal. Trash Container						\$6.22
Each Additional 95 Gal. Recycle Container						\$7.83
Each Additional 60 Gal. Recycle Container						\$4.77
Yard Waste Collection Monthly Fee (95 Gallon Container) (See Notes 11 & 12)						\$10.35
Each item(30 gal. bag equivalent)outside of the container						\$4.77
NOTE: Trash and Yard Waste collected weekly, recyclables every other week						
<u>ROLL-OFF CONTAINER FEES (SEE NOTE 9)</u>						
15 Cubic Yard Roll-off Container (un-compacted) pickup and disposal						\$419.45
30 Cubic Yard Roll-off Container (un-compacted) pickup and disposal						\$583.58
40 Cubic Yard Roll-off Container (un-compacted) pickup and disposal						\$720.09
Compacted Roll-off Container per ton + \$238.81 pickup charge						\$93.47
Over-compacted container per ton + \$238.81 pickup charge (requires manual removal of material)						\$187.00
15 or 30 CY Weekly Rental (not charged if container emptied at least once a week)						\$61.06
<u>TEMPORARY CONTAINERS/UNSCHEDULED CONTENTS DISPOSAL</u>						
1.5 Cubic Yard Weekly Rental Fee						\$29.03
Unscheduled contents disposal for a 1.5 to 2 CY Container or return to service blocked Container or reset/relocate dumpster						\$70.53
Unscheduled contents disposal for a 4 CY Container						\$108.23
Unscheduled contents disposal for a 6 CY Container						\$146.97
Unscheduled contents disposal for an 8 CY Container						\$178.89

<u>LANDFILL FEES</u>	
Disposal Cost per ton	\$84.37
Minimum Disposal Fee (½ ton minimum charge)	\$42.18
Heavy equipment assistance (unloading, towing, etc.) up to 15 min.	\$40.65
Heavy equipment assistance per each additional 15 min. increment	\$33.88
Bagged Trash (up to a 35 Gallon Bag, 5 bags maximum) per bag	\$1.50
Clean and uncontaminated soil (See Note 14)	No Charge
<u>TRANSFER STATION DISPOSAL FEES</u>	
Cost per ton	\$87.50
Up to 3 Cubic Yards	\$43.50
Each Additional Cubic Yard	\$14.50
Minimum Disposal Fee (½ ton minimum charge)	\$43.50
City Residents (Own or Rent in the City) up to 3 CY (See Note 4)	\$16.50
Bagged Trash (up to a 35 Gallon Bag, 5 bags maximum) per bag	\$1.50
Bagged recyclables (up to a 35 Gallon Bag, 5 bags maximum) per bag	\$1.50
Recyclables up to 3 CY	\$34.25
Recyclables over 3 CY, Per Ton	\$54.75
Electronic Recycling (Free to Private Residents of City/County)	See Note 5
<u>OTHER FEES</u>	
Admin. Fee Monthly Billings Auto/Compost Containers (See Note 13)	\$1.84
Admin. Fee Monthly Billing for Containers (See Note 13)	\$8.98
Freon Removal (Required for all Refrigerators, freezers, air conditioners)	\$57.50
Petroleum Contaminated Soil testing costs plus cost per ton (See Note 14)	\$84.37
Scattered trash collection fee per 15 min. (15 min. minimum charge) (See Note 3)	\$44.28
Passenger Tires under 20" (Each) (See Note 6)	\$4.74
Sunday Pickup	\$145.49
60 or 95 Gal. Container pickup and cleaning (per container) or discontinue yard waste	\$22.44
Container Placement Fee (See Note 12) or each additional Special Attention container	\$8.55
60 or 95 Gal. Contamination Fee, trash/yard waste/recycle or unbagged trash (per occurrence)	\$26.87
Dumpster or Transfer Station dump Contamination Fee, trash/yard waste/recycle or unbagged trash (per occurrence)	\$43.17
Mobile Homes, compacted per cubic yard (length x width x 2.5/27)	\$11.75
Dumpster Pickup and Cleaning per Container	\$56.63
Incinerators (ash pit)	\$134.61
Unsecured Load per Ton (Minimum 1 Ton)	\$47.47
Weight Ticket Fee at Transfer Station (No Public Scale)	\$9.04
60 or 95 Gal. Recycle Lid Lock	\$10.27
Dumpster Locking Bar	\$96.27
Dumpster Locking Caster (per container)	\$131.65
Replacement Padlock or key for dumpster locking bar	\$14.95
Removal, storage, disposal of containers illegally placed within City limits.	See Note 16
Event Pricing	See Note 17
<u>EXTRA PICKUPS</u>	
Up to 1 cubic yard (stove, refrigerator, etc.) (See Note 1)	\$43.17
For each additional cubic yard	\$28.72
One Packer Load	\$747.21
High Volume Pickup rate per ½ hour or fraction thereof	\$219.16
For extra pickups the high-volume rate applies for any time required to load material in excess of 15 minutes	
Note: All charges are based on a single location pickup	

Note 1: The freon removal fee must be paid in addition to disposal fee for all refrigerators, freezers, and air conditioners unless freon removal has been certified by a licensed repairman.

Note 2: A “building,” for the purposes of Section 8.44.010 D of City Code, is defined as a non-residential premises using a water meter. Buildings will be assessed at least a “Basic Rate Fee” for each collection point (i.e., container or set of containers) or charges based on the type and quantity of containers and frequency of pickups as outlined in this Solid Waste Fee Schedule. Multiple collocated, non-residential buildings owned by a single property owner will be assessed at least a “Basic Rate Fee” equal to the number of collection points. If 1.5 Cubic Yard or larger city dumpsters are used, the Basic Rate Fee is included in the fees for those containers. Charges are normally included in water and sewer bills issued to property owners or agents of such premises by the Board of Public Utilities.

Note 3: If material is left outside of dumpsters or if residents fail to control their waste, requiring manual pickup, the owner of the property may be assessed this additional cleanup fee for manpower and equipment time.

Note 4: City residents must show identification (driver’s license, etc.) and certify that material is their personal household waste to receive reduced Transfer Station rates.

Note 5: Electronic Components: Charges to commercial entities for recycling of electronic components are based on the City’s cost for recycling plus 10% for handling and processing. Contact the Solid Waste Division for current prices. Electronic components (computers, televisions, cell phones, etc.) contain hazardous materials and must not be disposed of in the Landfill. Recycling of these components is free to city/county residents at the Transfer Station.

Note 6: Tires larger than 20” will be charged by weight.

Note 7: Residents must present documentation from a doctor and certify that there is not an able-bodied person living in the home to qualify for complimentary “Special Attention” services. Documentation must be updated on an annual basis to continue in the program. A sanitation division employee will move one trash and one recycle auto cart from and return it to a designated and approved location each collection day. Additional carts may be included if justification is provided, and an additional fee is paid.

Note 8: Residential recycle containers will be equal to or larger than residential trash containers. To qualify for the smaller 60-gallon recycle container, residents must also have a 60-gallon trash container. Residents may choose not to accept a recycle container; however, there will be no reduction in the residential automated collection fee.

Note 9: Overweight or over-packed Roll-Off Containers will be charged double the disposal fee. Overloaded cardboard containers will be charged based on time required to empty the container.

Note 10: Residential trash and recycle service may be suspended for full months only. Full month suspension dates are based on billing cycles as defined by the Board of Public Utilities.

Note 11: The optional yard waste collection program may not be suspended, only discontinued. Residents who pay for the optional yard waste container receive pickup of up to one cubic yard of limbs, tree trimmings, hedge clippings and similar material. Residents must cut items to less than four-foot lengths and contact the Sanitation Division to schedule pickup. The Sanitation Division does not provide yard waste removal services to those who do not subscribe to the optional yard waste collection program.

Note 12: Place automated trash, recycle and yard waste containers a minimum of two feet from any object, i.e., vehicles, trailers, fences, poles, trees, other containers, etc., and be sure the area in front of the container (toward the street) is clear of obstructions. Waste must flow freely from containers when tipped. A Container Placement Fee is charged each time a driver must exit the vehicle to move a container so it may be safely dumped without striking a nearby object. The fee will not apply if a container is blown over by the wind or other act of nature.

Note 13: These charges apply to customers who do not get a water bill. Billing must be done manually by Solid Waste Staff.

Note 14: The Landfill Manager may request to inspect the origin of the soil and require testing to verify the soil is uncontaminated. Petroleum contaminated soil has minimum testing requirements per WDEQ guidelines. The customer will pay for any testing. If requested, test results shall be provided to the Landfill Manager a minimum of 48-hours prior to disposal.

Note 15: The Public Works Director or Deputy Director may negotiate costs and terms for unusual requests to dispose of material at the Landfill. Examples include but are not limited to: material from large commercial demolition or remodeling projects; material such as dirt that may be needed by the City; and material from accidents or natural disasters. Testing for hazardous materials may be required in these instances.

Note 16: Waste containers and their contents placed within city limits in violation of city code Chapter 8.44, Solid Waste, will be removed and disposed of and an appropriate fee assessed to the owner. Fee will be based on unscheduled contents disposal plus the Transfer Station disposal fee cost per ton.

Note 17: Contact the Sanitation Division to arrange waste collection for special events at least 10-business days prior to the event. Special event waste collection arrangements made less than 10-business days prior to the event will be subject to a 25% short notice fee. Orders under \$300 are subject to a \$50 administration fee.